

		sufficient to support the position of the party in question.” <i>Id.</i> at 851. Where a plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. Code Civ. Proc. § 437c(p)(1); <i>S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.</i> (2010) 186 Cal. App. 4th 383, 388. This means that a plaintiff who bears the burden of proof at trial by a preponderance of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not. <i>LLP Mortg. v. Bizar</i> (2005) 126 Cal.App.4th 773, 776. At that point, the burden shifts to the defendant “to show that a triable issue of one or more material facts exists as to that cause of action.” Code Civ. Proc. § 437c(p)(1). The moving party’s affidavits are strictly construed while those of the opposing party are liberally construed. <i>Villacres v. ABM Industries, Inc.</i>, 189 Cal.App.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. <i>Id.</i> <u>Discussion</u> “A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach.” <i>Miles v. Deutsche Bank National Trust Company</i> (2015) 236 Cal.App.4th 394, 402. With the Otero and Muren Declarations, Plaintiff has made a prima facie showing of on each element of its breach of contract the claim: - the contract [Otero Decl., ¶ 4 and E. 1; Muren Decl., ¶ 2]; - performance [Otero Decl., Ex. 1]; - breach [<i>id.</i>, pp 5-7 and Ex. 2]; and - damages. [<i>Id.</i>, ¶ 7 and Ex. 2.] With the Sanders Declaration, however, Defendants have shown a triable issue of fact as to, at least, the existence of the contract and breach. [Sanders Decl., ¶¶ 2-4.] Accordingly, the motion for summary judgment is denied.
6.	2023-1356203 Guo vs. Zhang	<u>Demurrer</u> Defendant Bo Zhang’s demurrer to Plaintiff Liao Guo’s Second Amended Complaint is overruled. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and

incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

Defendant demurs to Plaintiff's first cause of action for quiet title on the grounds that Plaintiff fails to state the adverse claims to title pursuant to Code Civ. Proc., § 761.020.

Plaintiff alleges in ¶ 28 that Defendant has an adverse claim to Plaintiff's interest, as he claims full ownership of the subject properties.

At the pleading stage, this is sufficient. Defendant does not assert any additional arguments in his demurrer.

The Court additionally finds that Defendant's demurrer is untimely. The Second Amended Complaint was filed and served on 10/16/25; thus, Defendant's deadline to demur expired on 11/18/25. The demurrer was not filed until 2/24/26. (See Code Civ. Proc., § 430.40(a).)

The Court thus overrules Defendant's demurrer for both of the reasons stated above. (See *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749.)

Motion to Strike

Defendant Bo Zhang's motion to strike Plaintiff's claim for attorney fees in her Second Amended Complaint is granted.

Plaintiff expressly does not oppose this, stating in the opposition that she inadvertently included the claim for attorney fees in the Second Amended Complaint and agrees to withdraw it.

Given Plaintiff's concession, the Court hereby strikes the claim for attorney fees without leave to amend.

Plaintiff shall give notice of both rulings.